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Case Number: 26STCV00686 Hearing Date: July 20, 2026 Dept: 514

Vogt v. Prime Healthcare Centinela,
LLC

26STCV00686

Plaintiff's Motion to Compel Defendant Prime Healthcare Centinela, LLC to
Provide Further Responses to Special Interrogatories (Set One)

Plaintiff's Motion to Compel
Defendant Prime Healthcare Centinela, LLC to Provide Further
Responses to Requests for Production (Set One)

Plaintiff's Motion to Compel
Defendant Prime Healthcare Centinela, Inc. to Provide Further
Responses to Requests for Production (Set One)

Tentative

The motion to compel Prime Healthcare
Centinela, LLC to provide further responses to Special Interrogatories (Set
One) is granted.

The motion to compel Prime Healthcare
Centinela, LLC to provide further responses to Requests for Production (Set
One) is granted in part and denied in part.

The motion to compel Prime Healthcare Services,
Inc. to provide further responses to Requests for Production (Set One) is

granted in part and denied in part.

Background

This action arises out of an employment relationship.

On January 9, 2026, Danielle Vogt ("Plaintiff") filed the complaint in this action against Prime Healthcare Centinela, LLC ("Centinela"), Prime Healthcare Services, Inc. ("PHSI"), Gabriel Schmidt, and Does 1 through 10, asserting causes of action for: (1) sexual harassment in violation of the Fair Employment and Housing Act (the "FEHA"); (2) retaliation in violation of Labor Code sections 1102.5, et seq.; (3) retaliation in violation of the FEHA, (4) violation of Labor Code section 232.5; (5) violation of Labor Code section 98.6; (6) wrongful termination in violation of public policy; (7) failure to prevent and/or remedy harassment and retaliation in violation of the FEHA; and (8) negligent hiring, supervision, and retention of employee.

On March 10, 2026, Defendant Centinela filed an answer to the complaint.

On March 11, 2026, Defendant PHSI filed an answer to the complaint.

On April 3, 2026, Defendant Gabriel Schmidt filed an answer to the complaint.

Currently set for hearing on July 20, 2026, are three motions.

First, on June 22, 2026, Plaintiff filed a motion to compel Centinela to provide further responses to Requests for Production (Set One) and for an order compelling production by a certain date. Centinela filed an opposition on July 6, and Plaintiff filed a reply on July 10.

Second, also on June 22, 2026, Plaintiff filed a motion to compel PHSI to provide further responses to Requests for Production (Set One) and for an order compelling production by a certain date. PHSI filed an opposition on July 7, and Plaintiff filed a reply on July 13.

Third, on June 23, 2026, Plaintiff filed a motion to compel Centinela to provide further responses to Special Interrogatories (Set One). Centinela filed an opposition on July 7, and Plaintiff filed a reply on July 13.

No sanctions are requested in any notice of motion and motion or opposition.

Trial is set for March 20, 2028.

Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc.,

§ 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

Discussion

Special
Interrogatories (Set One) (Centinela)

Plaintiff moves
to compel Centinela to provide a further response to Special Interrogatory No. 1, which seeks name and contact information for all employees “who worked in the same department, same shift, and at the same facility as Plaintiff from 2024-2025.”

Plaintiff has shown
an adequate attempt to resolve this dispute through the meet-and-confer process.

Defendant's
objections are overruled. Although it is true of course that employees (and all persons) have a right to privacy, in these circumstances the group of employees identified in the interrogatory are witnesses or potential witnesses, and the employees' right to privacy does not overcome the right of a plaintiff in civil litigation to information regarding witnesses and potential witnesses known to defendant.

The motion to
compel is granted.

Request
for Production of Documents (Set One) (Centinela)

Nos. 1, 3-9, 11-13, 25-58

Defendant's objections,
most of which are boilerplate, are overruled.

As to the objections based on attorney-client privilege or work product protection, Defendant has not met its initial burden to support the application of such privilege or protection. As to the objections to some of these requests based on the right to privacy of patients, Defendant may, at the time of the further response, produce a privilege log that identifies each document withheld on this basis and complies with all applicable requirements.

Defendant's
statements of compliance (where provided) are unclear and not code compliant.

Plaintiff has shown
an adequate attempt to resolve this dispute through the meet-and-confer process and has shown good cause for the production.

The request to
compel further responses to these requests is granted.

The request to
order a date certain for the Defendant to produce responsive documents is denied as not authorized by Code. If Defendant provides a statement of compliance and then fails to produce the responsive documents, Plaintiff may seek relief through a motion to compel production under Code of Civil Procedure section 2031.320 and seek sanctions.

Nos. 2, 10,
14-24

Defendant's
objection on the ground that these requests fail to identify the requested documents with reasonable particularity is sustained.

The request to

compel a further response to these requests is denied.

Request

for Production of Documents (Set One) (PHSI)

Nos. 1, 3-9,

11-13, 25-58

Defendant's objections,

most of which are boilerplate, are overruled.

As to the objections based on attorney-client privilege or work product protection, Defendant has not met its initial burden to support the application of such privilege or protection. As to

the objections to some of these requests based on the right to privacy of patients, Defendant may, at the time of the further response, produce a privilege log that identifies each document withheld on this basis and complies with all applicable requirements.

Defendant's

statements of an inability to comply (where provided) are qualified by

Defendant's non-waiver of objections that are overruled and are therefore not code compliant.

Plaintiff has shown

an adequate attempt to resolve this dispute through the meet-and-confer process and has shown good cause for the production.

The request to

compel further responses to these requests is granted.

The request to

order a date certain for the Defendant to produce responsive documents is denied as not authorized by Code. If

Defendant provides a statement of compliance and then fails to produce the responsive documents, Plaintiff may seek relief through a motion to compel production under Code of Civil Procedure section 2031.320 and seek sanctions.

Nos. 2, 10,

14-24

Defendant's

objection on the ground that these requests fail to identify the requested documents with reasonable particularity is sustained.

The request to

compel a further response to these requests is denied.

Conclusion

The Court GRANTS

Plaintiff's motion to compel Defendant Prime Healthcare Centinela, LLC to provide further responses to Special Interrogatories (Set One).

The Court ORDERS

Defendant Prime Healthcare Centinela, LLC to provide a code-complaint, verified, further response to Special Interrogatory No. 1 (Set One) by no later than August 10, 2026.

The Court GRANTS

IN PART and DENIES IN PART Plaintiff's motion to compel Defendant Prime Healthcare Centinela, LLC to provide further responses to Requests for Production (Set One).

The Court ORDERS

Defendant Prime Healthcare Centinela, LLC to provide a code-complaint, verified, further written response to Requests for Production Nos. 1, 3-9, 11-13, 25-58 (Set One) by no later than August 10, 2026.

The motion is

otherwise DENIED.

The Court GRANTS

IN PART and DENIES IN PART Plaintiff's motion to compel Defendant Prime Healthcare Services, Inc. to provide further responses to Requests for Production (Set One).

The Court ORDERS

Defendant Prime Healthcare Services, Inc. to provide a code-complaint, verified, further written response to Requests for Production Nos. 1, 3-9, 11-13, 25-58 (Set One) by no later than August 10, 2026.

The motion is
otherwise DENIED.

Moving Party is ORDERED to give notice.